

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JUSTIN SAPINI,

Plaintiff,

Index No.: 160000/2024

-against -

ANTHONY F. FERRARA and METRO-NORTH
COMMUTER RAILROAD,

Defendants.

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**BILL OF
PARTICULARS
AS TO
AFFIRMATIVE
DEFENSES**

PLEASE TAKE NOTICE, that the defendants, ANTHONY F. FERRARA and METRO-NORTH COMMUTER RAILROAD, by their attorneys MILBER MAKRIS PLOUSADIS & SEIDEN, LLP as and for their Bill of Particulars, allege as follows:

MVA-CULPABLE CONDUCT/ASSUMPTION OF THE RISK

The plaintiff was reckless, careless and negligent in the ownership, operation, maintenance, management, control, repair, supervision and inspection of her motor vehicle in that the plaintiff failed to observe the conditions on the roadway and have a due, timely, adequate and proper lookout for traffic along the aforesaid roadway, in failing to give any warning, notice or signal with regard to maneuvering her vehicle, in operating her vehicle at an excessive rate of speed in that plaintiff failed to exercise reasonable, due care and caution in failing to make adequate, proper and timely use of the brakes and failing to have said motor vehicle under reasonable and proper control, in failing to keep said vehicle at a reasonable and sufficient distance away from other vehicles so as to avoid sudden and unexpected maneuvers, stops and starts, in failing to use directional signals, in failing to utilize the horn, in failing to keep a proper lookout for traffic along the roadway, in failing what was there to be seen, in failing to use proper means and precautions to avoid, warn and guard against the happening of the accident, in

failing to observe the rules of the road and thereby causing and contributing to the contact between the vehicles.

SEAT BELT

Plaintiffs were careless and negligent in failing to utilize an available seat belt and plaintiff's failure to use the available seat belt caused, exacerbated, and contributed to their alleged damages herein.

SERIOUS INJURY

This request is objected as being palpably improper. The burden of proof is upon the plaintiff to prove a serious injury pursuant to the Insurance Law of the State of New York.

FAILURE TO MITIGATE DAMAGES-PERSONAL INJURY

Plaintiff failed to mitigate her damages by refusing proper medical care at the time and place of the occurrence, by failing to seek timely and appropriate medical care, by failing to properly adhere to the instructions of her medical providers, by disregarding medical advices, by refusing appropriate treatment, by failing to comply with medical instructions, by failing to seek appropriate medical care, and by otherwise failing to take appropriate steps to ensure that she properly recovered from the injuries she sustained.

COLLATERAL SOURCE- PERSONAL INJURY

Upon information and belief, any past or future costs or expenses incurred or to be incurred by the plaintiff for medical care, dental care, custodial care or rehabilitative services, loss of earnings or other economic loss, has been or will with reasonable certainty be replaced or indemnified in whole or in part from a collateral source as defined in Section 4545(c) of the Civil Practice Law and Rules and, therefore, any judgment awarded to the plaintiff in this action shall be reduced by the amount of any past or future cost or expense which has or will be replaced or indemnified in whole or in part from said collateral source.

EMERGENCY DOCTRINE

At all times, defendant acted reasonably due to a sudden condition/event which could not have been reasonably anticipated and which such sudden condition/event defendant did not cause or contribute to.

PLEASE TAKE FURTHER NOTICE, that the defendant presently lacks sufficient knowledge to respond further to those items demanded. When the requisite knowledge to respond is acquired a further response will be provided. See Major v. General Motors Corp., 126 A.D.2d 521, 510 N.Y.S.2d 643 (2d Dept. 1987).

Dated: Woodbury, New York
September 30, 2025

Yours, etc.

MILBER MAKRIS PLOUSADIS
& SEIDEN, LLP



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TO:

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